



United States  
Attorney's Office  
District of New Jersey



# Former Monmouth County Resident Sentenced to 16 Years in Prison for Role in Fraudulently Obtaining Over \$3.7 Million in Cares Act Loans

Tuesday, April 29, 2025

**For Immediate Release**

U.S. Attorney's Office, District of New Jersey

NEWARK, N.J. – A former resident of Monmouth County was sentenced to prison for his role in a scheme to fraudulently obtain Payroll Protection Program (PPP) and Economic Injury Disaster Loan (EIDL) funds, U.S. Attorney Alina Habba announced.

Kevin Aguilar, age 54, previously of Farmingdale, New Jersey, was sentenced by U.S. District Judge Michael A. Shipp in Trenton federal court following Aguilar's guilty plea to one count of conspiracy to commit bank fraud; seven counts of bank fraud; one count of conspiracy to commit wire fraud; three counts of wire fraud; one count of conspiracy to commit money laundering; one count of money laundering; and one count of aggravated identity theft. Aguilar was sentenced to 192 months in prison.

According to documents filed in this case and statements made in court:

From April 2020 to April 2021, Aguilar conspired with others to submit seven fraudulent PPP loan applications and three fraudulent EIDL applications on behalf of four businesses. Based on the fraudulent applications, Aguilar received a total of approximately \$3.3 million in PPP loan funds and approximately \$450,000 in EIDL funds. After receiving the PPP and EIDL funds, Aguilar caused those funds to be transferred to other businesses that he created to give the false appearance that the PPP and EIDL funds were being used for legitimate purposes. Aguilar then used the PPP and EIDL funds to purchase residential properties in Sherman, Texas, a new truck for approximately \$100,000, and to pay for other personal expenses.

In addition to the 192-month prison term, Judge Shipp sentenced Aguilar to 5 years of supervised release and ordered him to pay \$3,772,567 in restitution, as well as a forfeiture money judgment of

\$3,772,567. Judge Shipp also ordered the forfeiture of approximately \$1,511,221.62 that law enforcement seized from twelve bank accounts, as well as the three real properties in Sherman, Texas.

U.S. Attorney Habba credited special agents of the Federal Deposit Insurance Corporation – Office of Inspector General, under the direction of Special Agent in Charge Patricia Tarasca in New York; IRS – Criminal Investigation, under the direction of Special Agent in Charge Jenifer Piovesan; special agents of the Social Security Administration, Office of the Inspector General, under the direction of Acting Special Agent in Charge Amy Connelly; postal inspectors of the U.S. Postal Inspection Service, under the direction of Inspector in Charge Christopher A. Nielsen; special agents of the Federal Housing Finance Agency, Office of Inspector General, under the direction of Special Agent in Charge Robert Manchak; and special agents of the U.S. Attorney’s Office for the District of New Jersey, under the direction of Special Agent in Charge Thomas Mahoney.

The government is represented by Assistant U.S. Attorney David V. Simunovich of the U.S. Attorney’s Office’s Health Care Fraud Unit, Assistant U.S. Attorney Jennifer S. Kozar, of the U.S. Attorney’s Office’s Economic Crimes United in Newark, and Assistant U.S. Attorney Peter Laserna of the U.S. Attorney’s Office’s Bank Integrity, Money Laundering, and Recovery Unit.

The District of New Jersey COVID-19 Fraud Enforcement Strike Force is one of the five strike forces established throughout the United States by the U.S. Department of Justice to investigate and prosecute COVID-19 fraud. The strike forces focus on large-scale, multi-state pandemic relief fraud perpetrated by criminal organizations and transnational actors. The strike forces are interagency law enforcement efforts, using prosecutor-led and data analyst-driven teams designed to identify and bring to justice those who stole pandemic relief funds.

Anyone with information about allegations of attempted fraud involving COVID-19 can report it by calling the Department of Justice’s National Center for Disaster Fraud Hotline at 866-720-5721 or via the NCDF Web Complaint Form at: <https://www.justice.gov/disaster-fraud/ncdf-disaster-complaint-form>.

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Defense counsel: Alyssa Cimino, Esq., Fairfield, New Jersey; Robert Brady, Esq., Newton, New Jersey

*Updated April 29, 2025*

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